

TENTATIVE RULINGS FOR September 24, 2026
Department R-14
BEFORE THE HONORABLE TONY RAPHAEL
(909) 285-3717

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PLEASE REFER TO THE GENERAL ORDERS AND FORMS POSTED ON THE COURT’S WEBSITE.

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You must appear at the hearing if you are so directed by the court in the tentative ruling and be prepared to address those issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF RULING

ELLIS SANDERS

v.

**CHINO VALLEY UNIFIED SCHOOL
DISTRICT, et al.**

CIVRS2606345

PROCEDURAL AND FACTUAL BACKGROUND

The Pleadings and Allegations

Petitioner Ellis Sanders contends he was subjected to a campus exclusion order under Penal Code section 626.4, but despite requests for a hearing he was not provided one by Defendant Chino Valley Unified School District. The District also purportedly continued to impose the restrictions after the order's expiration period, withheld and redacted records related to Sanders's child, and failed to properly respond to public records requests. Sanders then filed the pending petition for writ of mandate against the District, Norm Enfield (the District's Superintendent), and Whitney Fields (who was responsible for administering the District's exclusion notice).

Through the operative first amended petition (FAP), Sanders asserts claims for (1) violation of mandatory duties under Penal Code section 626.4, (2) "respondents exceeded their statutory authority by imposing continuing restrictions after expiration of the Penal Code section 626.4 exclusion period," (3) failure to comply with mandatory duties governing access to educational records, and (4) failure to comply with the California Public Records Act.

The FAP indicates Sanders is the father of a minor enrolled at an elementary school operated by the District, he actively participated in matters related to his child's education, and intended to continue to exercise his rights to access educational records, participate in matters concerning the child's education, and lawfully access District property. (FAP at ¶¶ 1-2 and 39.) In early May 2026, "issues" arose about the child that resulted in communications about the withdrawal from the school and Sanders's request for educational records. (FAP at ¶ 40.)

Sanders was notified by phone on May 6 that the withdrawal had been initiated and, upon request, the District provided an exit/withdrawal form, though it was heavily redacted. (FAP at ¶ 43.) Various correspondences were then exchanged about the redactions and access to records. Sanders concedes to stating in the e-mails that he intended to "raise hell," but contends it was used in the colloquial sense to show frustration regarding the records dispute. (FAP at ¶¶ 45-49.)

A child custody proceeding occurred on May 11, 2026 and custody orders were issued (indicating the mother had been removing the child from school, though the mother was granted weekend visitations). The same day the District issued the notice of withdrawing consent to Sanders entering District property under Penal Code section 626.4. The notice advised the exclusion would remain in effect for 14 days and broadly included the alleged conduct justifying the withdrawal of consent. (FAP at ¶¶ 27-28 and 52-53; Ex.'s E-F.)

Sanders then repeatedly sought clarification about the allegations and demanded an administrative review, but the District refused to provide the hearing. (FAP at ¶¶ 29-30 and 58-60.) Furthermore, despite the expiration of the 14 days, the District has purportedly continued to assert the restrictions govern future access. Although Sanders asked for the basis for the continuing restrictions, the District failed to provide the supporting legal authority. (FAP at ¶¶ 32-33.) At the same time, however, Sanders concedes that he was permitted to meet with the school's principal

on May 14 and May 15, inside the school's office, about the child's re-enrollment and without law enforcement present. (FAP at ¶¶ 63-69.)

Sanders also claims he requested access to his child's records, but they were produced only after substantial redactions. Sanders also submitted a public records request concerning the exclusion, the requested hearing, communications among District officials, witness statements, investigative materials, and other records (FAP at ¶¶ 36 and 83.) The District eventually responded by indicating the request for the hearing was ineffective because it was not appropriately directed and the time to request a hearing and the exclusion period had expired. (FAP at 73 and 76.) The District also identified 90 potentially responsive records that were to be produced on a rolling basis. (FAP at ¶ 86.)

The Demurrer

Respondents now demur to the FAP on the grounds that (1) the first cause of action fails because the pleading fails to state sufficient facts to constitute a cause of action since the claim is moot, Sanders's right to request a hearing expired on May 25, 2026 or the date the exclusion also expired, and Sanders did not submit a written request for a hearing; (2) the second cause of action fails because Sanders did not identify the purported additional restrictions being imposed or the statutory basis upon which those restrictions should be enjoined; (3) the third cause of action fails to identify an action the law enjoins and the pleading fails to meet the minimal requirements of Code of Civil Procedure section 1085; and (4) the fourth cause of action also fails to identify an action the law enjoins and the pleading fails to meet the minimal requirements of Code of Civil Procedure section 1085. The demurrer is supported by a declaration from attorney Colin Barr and a meet and confer letter. No real distinction is made between Respondents in the demurrer.

DISCUSSION

An Overview of the Law Related to Demurrers and the Meet and Confer Requirement

A demurrer challenges defects that appear on the face of the pleading under attack, or from matters outside the pleading that are judicially noticeable. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The face of the complaint includes matters shown in attached exhibits and incorporated by reference. (*Frantz v. Blackwell* (1987) 189 Cal.App.3d 91, 94.) No other extrinsic evidence can be considered. (*Ion Equipment Corp. v. Nelson* (1980) 110 Cal.App.3d 868, 881.)

A demurrer predicated on a complaint's failure to state facts sufficient to constitute a cause of action (Code of Civ. Proc. §430.10, subd. (e)) should be granted only when the facts alleged on the face of the complaint fail to state *any* valid claim entitled to the plaintiff or disclose a complete defense to relief. Even if a plaintiff is mistaken as to the nature of the case or the legal theory on which he/she could prevail, the complaint is good against a general demurrer if the essential facts allege some valid cause of action. (*Gruenberg v. Aetna Ins. Co.* (1973) 9 Cal.3d 566, 572.)

When evaluating a demurrer, the Court gives the pleading a reasonable interpretation by reading it as a whole and all its parts in their context. (*Blank, supra*, 39 Cal.3d at 318.) The material facts that are properly pled and judicially noticed are assumed to be true for purposes of a demurrer. (*Ibid.*) Yet contentions, deductions or conclusion of fact or law are not assumed true. (*Ibid.*) “[T]he question of plaintiff's ability to prove these allegations, or the possible difficulty in making such proof does not concern the reviewing court.” (*Concerned Citizens of Costa Mesa, Inc. v. 32nd Agricultural Assn.* (1986) 42 Cal.3d 929, 936 (citations omitted).) The complaint is also to be liberally construed. (Code of Civ. Proc. §452.)

If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank, supra*, 39 Cal.3d at p. 318.) On the other hand, “a trial court does not abuse its discretion by sustaining a

general demurrer without leave to amend if it appears from the complaint that under applicable substantive law there is no reasonable possibility that an amendment could cure the complaint's defect." (*Hacienda v. City of San Marino* (1986) 42 Cal.3d 481, 486.)

Finally, under Code of Civil Procedure § 430.41, before filing a demurrer, the objecting party shall meet and confer with the opposing party in person, by video conference, or by telephone for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer. A declaration must also be filed in connection with the demurrer that declares the means by which the parties met and conferred and that the parties did not reach an agreement or that the opposing party failed to respond to the meet and confer.

In this case, the declaration from attorney Colin E. Barr indicates he sent Sanders a meet and confer letter and then spoke about his position with Sanders over the phone. Sanders also followed up with several e-mails, but the parties were unable to resolve their dispute so the demurrer was filed. Overall, the meet and confer efforts were sufficient.

The Law Related to Writ Petitions

Code of Civil Procedure section 1094.5, subdivision (a), vests authority in the court to review the validity of any final administrative order or decision made as a result of a proceeding in which by law a hearing is required to be given, evidence is required to be taken, and discretion in the determination of facts is vested in the inferior tribunal. Subdivision (c) states: "Where it is claimed that the findings are not supported by the evidence, in cases in which the court is authorized by law to exercise its independent judgment on the evidence, abuse of discretion is established if the court determines that the findings are not supported by the weight of the evidence. In all other cases, abuse of discretion is established if the court determines that the findings are not supported by substantial evidence in the light of the whole record."

“By comparison, a writ of mandate under [Code of Civil Procedure] section 1085 is available where the petitioner has no plain, speedy and adequate alternative remedy; the respondent has a clear, present and usually ministerial duty to perform; and the petitioner has a clear, present and beneficial right to performance. [Citations.] Where a petition challenges an agency’s failure to perform an act required by law rather than the conduct or result of an administrative hearing, the remedy is by ordinary mandate pursuant to Code of Civil Procedure section 1085, not by administrative mandate pursuant to section 1094.5.” (*Conlan v. Bontá* (2002) 102 Cal.App.4th 745, 751–752.)

The First Cause of Action for Violation of Mandatory Duties under Penal Code section 626.4

An overview of the law

Penal Code section 626.4, subdivision (a), provides that “[t]he chief administrative officer of a campus or other facility of ... a school, or an officer or employee designated by the chief administrative officer to maintain order on such campus or facility, may notify a person that consent to remain on the campus or other facility under the control of the chief administrative officer has been withdrawn whenever there is reasonable cause to believe that such person has willfully disrupted the orderly operation of such campus or facility.” When consent is withdrawn, by any authorized officer or employee, that person “shall as soon as is reasonably possible submit a written report to the chief administrative officer or designee.” (Penal Code, § 626.4, subd. (b) [outlining the contents of the report].) If the chief administrative officer finds “there was reasonable cause to believe that such person has willfully disrupted the orderly operation of the campus or facility, the chief administrative officer may enter written confirmation upon the report of the action taken by the officer or employee.” (Penal Code, § 626.4, subd. (b)(2).)

Consent is also supposed be reinstated when there is reason to believe the presence of the person will not constitute a substantial and material threat to the orderly operation of the campus or facility. However, in “no case shall consent be withdrawn for longer than 14 days from the date upon which consent was initially withdrawn.” (Pen. Code, § 626.4, subd. (c).) “The person from whom consent has been withdrawn may submit a written request for a hearing on the withdrawal within the two-week period. The written request shall state the address to which notice of hearing is to be sent. The chief administrative officer shall grant such a hearing not later than seven days from the date of receipt of the request and shall immediately mail a written notice of the time, place, and date of such hearing to such person.” (Pen. Code, § 626.4, subd. (c).)

Sanders’s allegations

In this case, the first cause of action is based upon Code of Civil Procedure section 1085 (FAP at 15:4-5) and the District’s failure to provide the administrative hearing, purportedly because the request was not submitted through the appropriate administrative channel and because the statutory period to request the hearing and the exclusion period had ended. (FAP at ¶ 111.) The exhibits attached to the FAP indicate Sanders was provided with notice of the withdrawal of consent on May 11, 2026. (FAP, Ex. F.) Fourteen days later was May 25, but the exhibits attached to the FAP indicate Sanders sent an e-mail to Enfield on May 12, or within the 14 day period, inquiring about the right to appeal or the right to have a hearing. Sanders also sent a follow up e-mail on May 25 as well, which again would be within the 14 day period. (FAP at Ex. G.) The correspondences clearly indicate Sanders was requesting a hearing if he had a right to one, though he did not provide a mailing address. (*Ibid.*)

Overall, the FAP and its exhibits indicate Sanders requested a hearing within the 14-day period contemplated by section 626.4 as the statute expressly provides that “the person from whom

consent has been withdrawn may submit a written request for a hearing on the withdrawal **within the two-week period.**” That is significant because in the responsive letter that Sanders eventually received, Whitney suggested that “any request for a hearing must [have been] made within 7 days after notice of the ban is provided.” Whitney therefore incorrectly relied upon the wrong deadline. (FAP, Ex. H.)

Whitney also suggested that since she had authored the notice and not Enfield, the request for a hearing should have been sent to her and therefore the other correspondence “shall be without effect.” (FAP, Ex. H.) No authority was apparently provided by Whitney for that assertion and the notice she provided did not address the appeal or hearing rights, let alone suggest that the request for a hearing had to be directed to her. Section 626.4 also does not clearly address to whom the request for a hearing should be directed, but it does indicate it is the “chief administrative officer” that grants the hearing no later than “seven days from the date of receipt of the request and shall immediately mail a written notice of the time, place, and date of such a hearing to such person.” (Penal Code, § subd. (c).) That is significant because the FAP indicates Enfield is the chief administrative officer (FAP at ¶ 6) and that is to whom Sanders directed the request for a hearing.

It is also significant that the request for a hearing can occur anytime within the 14-day period and that the hearing must occur no later than seven days from the receipt of that request. Thus, the Penal Code tends to contemplate a hearing even after the expiration of the withdrawal of consent period. As a result, a hearing could have occurred as late as June 1, 2026, yet Whitney’s response to Sanders occurred before that day, or on May 27. At that time, Whitney suggested that “in light of the expiration of the ban” itself that the District would not engage in “further proceedings regarding a hearing at this time.” (FAP at Ex. H.) That appears to also be a misconception of the law because, as noted, section 626.4 potentially contemplates a hearing even

after the expiration of the 14-day period. It is also not clear from the face of the FAP when Whitney learned about Sanders’ request for a hearing, but she did reference the prior requests that Sanders made to Enfield.

As for the District’s claim that the cause of action is now moot, a writ of mandate requires an “actual controversy,” but there is a “mootness exception for issues of public importance that are likely to recur. (*Roger v. County of Riverside* (2020) 44 Cal.App.5th 510, 529–530.) The requirement of a ministerial duty to act “may be greatly relaxed, if not virtually abandoned, where the question is one of public interest ... where the problem presented and the principle involved are of great public interest, the courts have deemed it appropriate to entertain the proceedings rather than to dismiss the same as being moot.” (*Id.* at p. 530 [citing, among others, *Californians for Alternatives to Toxics v. Department of Pesticide Regulation* (2006) 136 Cal.App.4th 1049, 1069—trial court erred in dismissing the plaintiff’s mandamus claims because although the claims were moot, the case raised “important issues of public policy that are likely to recur”].)

Here, section 626.4 implicates First Amendment rights (see generally *Braxton v. Municipal Court* (2017) 10 Cal.3d 138, 144) and potentially parents’ due process rights (*Pierce v. Society of the Sisters of the Holy Names of Jesus and Mary* (1925) 268 U.S. 510, 534 [“parents and guardians, as a part of their liberty, might direct the education of children by selecting reputable teachers and places]; *Mirabelli v. Bonta* (2026) 607 U.S. 492, 497 [parents have a right “not to be shut out of participation” by schools in decisions regarding their children’s mental health].)

There also is the potential that the District may continue to fail to provide hearings. As noted above, Whitney appears to have misunderstood the deadline to request a hearing (cutting the time in half), misunderstood whether a hearing could occur outside the 14-day deadline, and suggested that a request for a hearing made directly to the person with authority to grant the hearing

was ineffective. The misconceptions about the law would tend to suggest the District is bound to repeat its mistakes. Moreover, the FAP indicates the District is continuing to enforce the ban against Sanders. (FAP at ¶¶ 17d, 25, and 32.)

Overall, the FAP sufficiently alleges that the District failed to perform a ministerial duty, that is hold the hearing contemplated by section 626.4 based upon Sanders's request; the issues presented involve matters of public importance and the allegations suggest the dispute is ongoing or the issues are likely to recur.

The Second Cause of Action for Exceeding the Exclusion Period

The second cause of action is based upon the fact that the withdrawal of consent is only supposed to be temporary under Penal Code section 626.4, yet the District has continued to assert that the restrictions remain and has continued to enforce those restrictions. (FAP at ¶¶ 123 and 129.) So, whether the claim is construed as one requiring a hearing in light of the ongoing ban, a claim for declaratory relief as to whether the alleged ongoing ban is permitted under section 626.4, or otherwise, a valid claim has been sufficiently stated. As noted above, a demurrer is generally overruled if any valid claim is stated.

It appears that the main issue advanced in the demurrer is the suggestion that the allegations are conclusory, but the FAP identifies the ban (and includes the notice of the withdrawal of the consent). In that regard, the suggestion that the District claims the ban still exists and that it is continuing to enforce the ban is not conclusory.

The Third Cause of Action for Failure to Comply with Mandatory Duties Governing Access to Educational Records

In connection with the third cause of action, Sanders alleges he requested educational records maintained by the District concerning his child and only redacted portions of the

documents were produced. (FAP at ¶¶ 135-136.) The FAP also references Education Code sections 49060 through 49069.7. The latter indicates, at subdivision (a), parents of pupils “have an absolute right to access to any and all pupil records related to their children that are maintained by school districts or private schools. The editing or withholding of any of those records, except as provided for in this chapter, is prohibited.” Subdivision (b) then requires school districts to adopt procedures for granting parental requests for copies of pupil records or to inspect and review them, provided that the requests “shall be granted no later than five business days following the date of the request.”

In the demurrer, Respondents suggests the FAP does not specify an act which the law specifically enjoins. The demurrer fails to even reference Education Code section 49069.7, let alone provide an adequate analysis as to why it does not impose a mandatory ministerial duty for purposes of Code of Civil Procedure section 1085. The Court’s role is not to advance the litigants’ arguments for them as the relevant law and an applicable analysis must be provided by the movant. (*Quantum Cooking Concepts, Inc. v. LV Associates, Inc.* (2011) 197 Cal.App.4th 927, 931 [trial court is not required to “go through the paperwork backwards and forwards to try to figure out how the law applies to the facts.”].)

Furthermore, while the FAP could be clearer as to what documents are specifically at issue, less particularity is required at the pleading stage where, as is the case here, the defendant “may be assumed to possess knowledge of the facts at least equal, if not superior, to that possessed by the plaintiff.” (*Dino, Inc. v. Boreta Enterprises, Inc.* (1964) 226 Cal.App.2d 336, 340.) Respondents in this case should have equal or greater knowledge about what documents were not produced or what information was redacted and they would have at least equal knowledge of what documents were requested. As a result, the claim is sufficiently stated.

The Fourth Cause of Action for Failure to comply with the California Public Records Act

“The California Public Records Act (CPRA; Gov. Code, § 7920.000 et seq.) imposes a duty on an agency to determine whether a public records request seeks any disclosable records in its possession within 10 days from receipt of the request, or up to 24 days if there are “unusual circumstances.” (§ 7922.535, subd. (b); see *id.*, subd. (a).) If there are disclosable records in the agency’s possession, the agency is then required to make the records “*promptly available.*” (§ 7922.530, subd. (a), italics added.)” (*Voice of San Diego v. San Diego Unified School Dist.* (2026) 120 Cal.App.5th 923, 930, *as modified* (May 27, 2026), *review filed* (Sept. 2, 2026).)

“The CPRA authorizes any person seeking “to enforce that person’s right under [the CPRA] to inspect or receive a copy of any public record or class of public records” to bring an action for injunctive or declarative relief or a writ of mandate to obtain judicial review of an agency’s decision not to disclose requested records. (§ 7923.000.) If, after issuing an order to show cause, the court determines “the public official’s decision to refuse disclosure is not justified” under the CPRA, it “shall order the public official to make the record public.” (§§ 7923.110, 7923.100.) Thus, the remedy available under the CPRA is ordinarily a determination “whether a particular record or class of records must be disclosed.” (*Voice of San Diego v. San Diego Unified School Dist.* (2026) 120 Cal.App.5th 923, 932–933, *as modified* (May 27, 2026), *review filed* (Sept. 2, 2026).)

In this case, while the FAP as a whole is broadly labeled as a petition for writ of mandate, the fourth cause of action specifically references the CPRA and Government Code sections 7920.000, et seq. The FAP also indicates Sanders submitted a request under the CPRA seeking records related to the temporary exclusion, the requested administrative hearing, communications among District officials, witness statements, investigative materials and other records concerning

the matters described in the petition. (FAP at ¶ 147.) The District purportedly failed to produce all responsive nonexempt records and failed to identify the basis for withholding or redacting the records. (FAP at ¶ 150.)

In the demurrer, Respondents contends the FAP fails to identify an act which the law specifically enjoins for purposes of section 1085. However, as indicated above a person may enforce CPRA rights via an action for injunctive or declaratory relief or a writ of mandate. If nothing else, Sanders seeks a determination as to whether the District complied with the CPRA obligations. (FAP at p. 21.) The only other issue raised in the demurrer is the lack of particularity in the description of the records, but as noted above less particularity is needed at the pleading stage when the defendant is presumed to have equal or superior knowledge than the plaintiff. The demurrer is therefore overruled.

CONCLUSION

Based on the foregoing, the Court rules as follows:

1. Overrules the demurrer to the first cause of action.
 - a. The claim is sufficiently stated. The FAP and exhibits indicate Sanders timely requested a hearing, but was never provided with one despite a clear ministerial duty for the District to provide such a hearing under Penal Code section 626.4. The FAP also suggests the District is continuing to enforce the ban. (FAP at ¶¶ 17d, 25, and 32.)
 - b. The Court need not deem the claim moot in light of the purported ongoing nature of the enforcement of the ban (FAP at ¶¶ 17d, 25, and 32) the important First Amendment and parental due process rights implicated by the ban and section 626.4, and because the District's handling of the ban (its

erroneous application of the law) further suggests the problem is likely to recur.

- i. In particular, the FAP and exhibits indicate the District misunderstood the deadline to request a hearing (cutting the time in half); the District failed to recognize that a hearing can occur outside of the 14 day period based on the plain language of section 626.4 (indeed the statute essentially suggests one can occur as late as 21 days after the notice of the ban); the District ignored the fact that 626.4 indicates the chief administrative officer, who allegedly was Enfield, is the individual that grants the hearing and that is who allegedly received the request for a hearing in this case; and it is not clear that Whitney had not seen the requests for a hearing sooner and she did not provide notice of the right to a hearing, let alone indicate who should receive it. (FAP at ¶ 6, 106-118, Ex.'s F-H)

2. Overrules the demurrer to the second cause of action.

- a. Whether the claim is construed as one requiring a hearing in light of the alleged ongoing ban, a claim for declaratory relief as to whether the alleged ongoing ban is permitted under section 626.4, or otherwise, a valid claim has been sufficiently stated. The second cause of action is based upon the fact that the withdrawal of consent is only supposed to be temporary under Penal Code section 626.4, yet the District has continued to assert that the restrictions remain and has continued to enforce those restrictions. (FAP at

¶¶ 123 and 129.) Those allegations are not conclusory as the demurrer suggests.

3. Overrules the demurrer to the third cause of action.

- a. The FAP alleges Sanders requested educational records maintained by the District concerning his child and only redacted portions of the documents were produced. (FAP at ¶¶ 135-136.) The FAP also references Education Code sections 49060 through 49069.7. The demurrer fails to reference, let alone provide an analysis on the potential applicability of Education Code section 49069.7, which generally imposes a mandatory duty upon the District to provide parents with unedited pupil records (and no exception to section 49069.7 is argued by the District in the demurrer). Less particularity is also needed at the pleading stage regarding the documents and redactions at issue given the District's presumed knowledge. (*Dino, Inc. v. Boreta Enterprises, Inc.* (1964) 226 Cal.App.2d 336, 340.)

4. Overrules the demurrer to the fourth cause of action.

- a. The FAP sufficiently alleges a CPRA claim. (FAP at ¶¶ 147-150 and p. 21.)

Counsel for the moving party is ordered to provide notice.